

argue that she is both admitting and denying the allegations. However, a reasonable inference is that Defendant may be admitting some allegations – such as the existence of an agreement – but not others – such as the particular amount she owes.

Either way, this court finds that there is at least a reasonable possibility that the defect of ambiguity can be cured through amendment.

Disposition

Plaintiff's Motion is Granted.

Defendant will have 10 days from notification of written notice of this Order to file an Amended Answer.

Plaintiff will file the Order and provide notice to the Defendant of the Order.

13. 9:00 AM CASE NUMBER: L25-14979
CASE NAME: MIDLAND CREDIT MANAGEMENT, INC. VS. JOLYNN PIAZZA
***HEARING ON MOTION IN RE: TO QUASH SERVICE OF SUMMONS**
FILED BY:
TENTATIVE RULING:

Defendant filed a Motion to Quash the Summons on 2/24/26, arguing invalid service.

A copy of the Motion was served on Plaintiff.

The original motion hearing was scheduled for 3/24/26, but then the court continued the hearing to 6/2/26, 9 am. The court provided mail notice of the 6/2/26 date to both parties.

The Motion is unopposed but that may be because default was entered on 3/26/26.

The court will address this Motion notwithstanding the entry of default.

Background

Defendant specifically claims that substitute service in this matter is invalid because it was served on her son, whom she claims is not a competent member of her household. She writes that he does not live with her. She does not provide any more detail. She does not dispute that her son received the documents. She does not dispute that she

received the documents.

The proof of service of process, filed 1/26/26, contradicts this claim. This document reflects that a registered process server left the documents with a man who identified himself as the co-resident of the residence. The address of the residence is the same as the one listed on Defendant's Motion. The document also contained a declaration of reasonable diligence, reflecting the server's multiple attempts to personally serve the defendant.

The court takes judicial notice of the proof of service of process,

Analysis

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, "[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service." *Summers v. McClanahan* (2006) 140 CA4th 403, 413.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Evidence Code Section 647*.

Service of process by delivering copies of the documents to someone other than defendant, and then subsequently mailing copies to the defendant, is permissible. *CCP 415.20(b)*. This service can occur at the defendant's "dwelling house [or] usual place of abode ... in the presence of a competent member of the household or a person apparently in charge of his or her ... usual mailing address." *Id.*

These provisions are to be liberally construed if actual notice has been received by the defendant. *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App. 4th 1387, 1392 (substitute service found where gate guard to a home was given authority to control access to appellants' home; the gate guard's relationship with appellants made it more likely than not that he would deliver process to appellants).

The test of whether substitute service is valid is whether the service is "reasonably calculated to give an interested party actual notice of the proceedings and an opportunity to be heard ... [in order that] the traditional notions of fair play and substantial justice implicit in due process are satisfied." *Id.*, quoting *Zirbes v. Stratton* (1986) 187 Cal.App.3d 1407, 1416.

There are prerequisites for substitute service. The plaintiff must first make a good faith effort to personally serve the defendant. “Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as “reasonable diligence.”” *Rodriguez v. Cho* (2015) 236 CA4th 742, 750, quoting *American Express Centurion Bank v. Zara* (2011) 199 CA4th 383, 389.

In the instant matter, the court finds that Plaintiff exercised reasonable diligence in attempting to personally serve Defendant, and that Plaintiff also mailed a copy of the process documents to Defendant after the apparent substitute service.

The court also finds, by a preponderance of the evidence, that Defendant actually received process. First, Defendant does not dispute this. But, second, the proof of service did not suggest the relationship of the co-resident to Defendant; it was the Defendant who identified this person as her son. It does not appear that Defendant could have known that it was her son who received the documents unless he, in fact, told her.

That Defendant received process supports the position that, at minimum, the service of process on the person identified in the proof of service was reasonably calculated to give the Defendant actual notice of the proceedings. It further lends credibility to the process server’s declaration that the recipient did, in fact, identify himself as the co-resident.

Disposition

Defendant’s Motion is denied.

Court to file Order.

Courtroom Clerk's Session

14. 1:31 PM CASE NUMBER: N26-0815
CASE NAME: MARY KESHISHIAN VS. CATHERINE GLENN
HEARING ON REQUEST FOR RESTRAINING ORDER
FILED BY:
TENTATIVE RULING:

15. 1:30 PM CASE NUMBER: RS25-0940
CASE NAME: MYA HODGES-WATSON VS. CHRISTOPHER COX